

File No.: EXP202305756

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Ms. A.A.A. with ID ***NIF.1, on behalf of Ms. B.B.B. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated August 2, 2023, and based on the following

FACTS

FIRST: On August 2, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202305756, by virtue of which a fine of XXX€ was imposed on B.B.B. for the infringement of Articles 5 and 13 of the GDPR.

TO IMPOSE on Ms. B.B.B., with ID ***NIF.2, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of XXX€.

This resolution, which was notified to the appellant on August 17, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and supplementary to Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00232/2023, the following were recorded:

First: The facts arise from the complaint dated 02/01/23 through which the following facts were reported:

(...) they have surveillance cameras on their properties, which are manifestly oriented towards the property of the complainant, without authorization for such image capture...

It includes complaints filed with the Civil Guard and a statement made in court regarding the reported facts and images of the camera locations and affected areas.

Second: It is recorded that Ms. B.B.B., with ID ***NIF.2, is the main responsible party.

Third: It is recorded that the installed system is not properly informed indicating that it is a video-monitored area.

Fourth: It is recorded that there are image capture devices that are poorly oriented towards neighboring areas without justified cause.

Fifth: No statement has been made regarding the legality of the system despite the notification of the Agreement to Initiate the present procedure.

THIRD: The appellant submitted a reconsideration appeal on August 24, 2023, to this Spanish Agency for Data Protection, basing it fundamentally on the following aspects:

"That on August 2, 2023, the Director of the Spanish Agency for Data Protection issued the following resolution of the sanctioning procedure: To impose on Ms. B.B.B., with ID: ***NIF.2, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, a fine of XXX€.

That the Court of First Instance No. 2 of Santa Cruz de Tenerife, Preliminary Proceedings

***NUMBER.1, issued an order of Dismissal and therefore filed it, which was presented in a previous document.

It has been demonstrated by the report of the Civil Guard that none of the cameras are on the property of Mr. C.C.C. and that they do not focus on his home; the same are presented with photographs, with dates, as well as the signs informing that there are cameras placed and focusing on the property of Ms. B.B.B., given that she and her husband live alone and are elderly. Their children have placed these cameras for the reasons stated."

FOURTH: On 20/09/23, a representation document was submitted to act on behalf of Ms. B.B.B.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in

accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

In this case, the document qualified as dated 01/09/23 is examined, through which the disagreement with the sanctioning resolution of this agency is expressed.

The facts arise from the complaint dated 02/01/23 in which the appellant reported the "presence of poorly oriented cameras" towards the neighboring property, providing an image of the presence of device(s) hidden among the vegetation.

Initially, the content of Article 5.1 letter c) of the GDPR was considered affected, which states: "Personal data shall be: c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

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On behalf of the appellant, it is alleged that the "facts" were subject to provisional dismissal in the Court of First Instance No. 2 (Santa Cruz de Tenerife).

In the provisional dismissal, a procedural step is assumed, which can be appealed if the circumstances that motivated such dismissal change, halting the case and initiating the filing of the proceedings, with the force of formal *res judicata*. Judicial proceedings will be reopened when permitted.

For its part, the provisional dismissal implies the suspension of the process, which may be resumed if the circumstances justifying such dismissal change. That is to say, the process is merely suspended, without the effect of material *res judicata*.

This body considers the initial analysis of the Civil Guard valid, which, upon being transferred to the scene of the events, considers that despite the unsuitable location of the device, "it is oriented towards the entrance area" of the property of the respondent, without any objective evidence having been provided to substantiate otherwise.

In any case, it is reminded of the obligation to inform about the presence of video surveillance cameras by means of the presence in a visible area of informative signs indicating that it is a area, as well as informing about the responsible party and how to exercise their rights, a point on which the appellant remained silent.

Article 22, section 4 of the LOPDGDD states the following:

"4. The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device."

In the documentation submitted during the appeal phase, the photographs provided, aside from being taken from a considerable distance, allow for the observation that only one informative sign has been placed, without informing on it of the other legally required matters.

Article 118 of Law 39/2015 (October 1) states: "Facts, documents, or allegations of the appellant shall not be taken into account in the resolution of appeals when they could have been submitted during the allegations phase but were not. The practice of evidence may also not be requested when its lack of execution in the procedure in which the appealed resolution was issued is attributable to the interested party" (*the emphasis belongs to this body).

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Consequently, in the present appeal for reconsideration, it is considered that the documentation provided has undergone a prior analysis of the device in question within the framework of a criminal process that certifies, at that temporal moment, that it did not affect areas reserved for the privacy of the claimant.

This body, however, warns about the unsuitable location of the camera placed high or camouflaged in a tree, recommending installation in a fixed location (e.g., the facade of the building) to avoid further controversies or actions regarding it, given that the essential aspect is that the measure is proportionate and adequate to the intended purpose.

Thus, considering that the device in question was analyzed by the State Security Forces, determining unequivocally that it could not affect the claimant's property at that temporal moment, it is deemed appropriate to annul the fine of €300 for the infringement of Article 5.1 c) of the GDPR, albeit with the recommendations previously stated.

Consequently, it is appropriate to confirm the fine of €300 for the infringement of Article 13 of the GDPR, for having a video surveillance camera that was not properly signposted at the time the events were reported to this Agency.

The remaining issues related to neighborhood problems are outside the jurisdictional framework of this Agency and should be raised, if applicable, in the appropriate judicial instances.

Finally, it is noted that given the advanced age of the appellants, the website of this body www.aepd.es has the Guide to Video Surveillance available for free access, where the requirements that must be met by cameras installed by individuals can be consulted.

In view of the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: PARTIALLY GRANT the appeal for reconsideration filed by B.B.B. against the resolution of this Spanish Agency for Data Protection issued on August 2, 2023, in file EXP202305756, confirming the infringement of Article 13 of the GDPR for the device installed not being properly signposted.

SECOND: ORDER, in accordance with Article 58.2 of the GDPR, that within 10 working days the following measure be adopted:

- Submission of a clear photograph with date and time of the informative sign filled in all its sections, indicating the responsible party for the processing, effective address for exercising rights, and information on how to exercise the same under the current regulations.

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THIRD: NOTIFY this resolution to Ms. A.A.A., representative of the respondent B.B.B.

THIRD: Warn the sanctioned party that the imposed sanction must be enforced once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXA-BANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1,

on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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